

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sarah Wertheimer	Team: Team # 1	CCRB Case #: 200617164	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/21/2006 1:51 AM	Location of Incident: 2734 Jerome Ave	Precinct: 52	18 Mo. SOL 6/21/2008	EO SOL 6/21/2008	
Date/Time CV Reported Fri, 12/22/2006 9:33 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/27/2006 1:58 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joel Medina	30430	935297	052 PCT
2. POM Maurice Harrington	06286	934992	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Maurice Harrington	Discourtesy: PO Maurice Harrington spoke obscenely and/or rudely to § 87(2)(b)	
B.POM Joel Medina	Discourtesy: PO Joel Medina spoke obscenely and/or rudely to § 87(2)(b)	

Synopsis

On December 22, 2006, § 87(2)(b) of § 87(2)(b) in the Bronx, filed the following complaint with the CCRB via telephone. § 87(2)(b) stated that on December 21, 2006 at approximately 1:50 AM in the vicinity of 2734 Jerome Avenue in the Bronx, Police Officer Joel Medina and Police Officer Maurice Harrington spoke rudely and discourteously to her. According to § 87(2)(b)'s initial narrative, Officers Medina and Harrington both cursed at her. They said, "You have no fucking manners" and "Go the fuck over there!" § 87(2)(b) further stated that she told Officer Medina that she was on the phone with Internal Affairs and that the latter said to his partner, "I'm leaving!" § 87(2)(b) further stated that the officers made matters worse and were unprofessional.

At 9:30 am on January 3, 2007 the undersigned attempted to contact § 87(2)(b) at her home number. A woman named § 87(2)(b) (last name unknown) confirmed that § 87(2)(b) did live at that residence and that she would be home at 2 pm. The first please call letter was mailed to § 87(2)(b)'s home address. The undersigned called back at 2:45 pm and spoke with § 87(2)(b) who said she was sleeping and asked that the investigator call her back at 4 pm. At 4pm the undersigned called § 87(2)(b) and spoke with a § 87(2)(b) who said that § 87(2)(b) was still sleeping. A message was left with § 87(2)(b) that § 87(2)(b) should call back. The investigator's name and number were also left. At 9:45 am on January 4, 2007, the undersigned called § 87(2)(b)'s home. The undersigned spoke with § 87(2)(b) who said she was sleeping and asked the investigator to call back at a later time. At 11:40 am the investigator called back and spoke briefly with § 87(2)(b) who sounded very much asleep. § 87(2)(b) confirmed her contact information with the investigator, and said that she had filed the complaint because the officers were rude. When asked to explain in greater detail the incident that led to § 87(2)(b)'s complaint, and more specifically why § 87(2)(b) was interacting with the police in the first place, § 87(2)(b) stated that she was tired and that it was complicated. The undersigned once again left her name and her telephone number with § 87(2)(b) and told her that her complaint would be closed if she did not call back by the end of the week. On January 5, 2007, a final please call letter was sent. On January 8, 2007, the undersigned called § 87(2)(b)'s home at 4 pm and was told that she was not home. The undersigned again left a message stating that § 87(2)(b)'s complaint would be closed without investigation if § 87(2)(b) did not call back. On January 11, 2007, § 87(2)(b) had still not called back and the first please call letter was returned to the investigator because the address was unknown, though § 87(2)(b) had herself confirmed this address at an earlier time. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: